

HOW TO ORDER THE RECORD ON APPEAL

NOTE: If there are any words or terms used in these instructions that you do not understand, please visit Illinois Legal Aid Online at ilao.info/glossary. For more information about going to court, including how to fill out and file forms, call or text Illinois Court Help at 833-411-1121 or go to ilcourthelp.gov.

More information and resources for civil appeals are available at: ilcourts.info/appl-resources. There is also a Guide for Appeals to the Illinois Appellate Court for Self-Represented Litigants at: ilcourts.info/aoic-appl-guide.

What is the Record on Appeal?

The Record on Appeal is made up of all the pleadings, orders, motions, evidence, testimony, exhibits, and other documents that were considered by the trial court judge. The appellate court uses the Record on Appeal to find out what happened in the trial court. The appellate court cannot look at anything that is not in the Record on Appeal, so you must have a complete Record on Appeal.

Who can use the forms for ordering the Record on Appeal?

- The person who filed the appeal (the appellant) must order the Record on Appeal.
- It is the appellant's responsibility to make sure the Record on Appeal is complete.
- **NOTE:** If you are appealing one of the orders listed in Rule 307, you need to file a Rule 328 Supporting Record instead of a *Request for Preparation of Record on Appeal*. For more information about filing a Rule 328 Supporting Record, see the Appellate Lawyers Association's "A Guide to Civil Appellate Procedure": bit.ly/ala-appl-guide.

What form do I need to fill out to order and file the Record on Appeal?

Request for Preparation of Record on Appeal: This form is used to ask the trial court clerk's office to organize everything in the trial court file, put page numbers on it, and make it ready for the appellate court. The email address (if you have one) and mailing address you put on the *Request for Preparation of Record on Appeal* is where important legal documents may be sent to you. You should use an email account that you do not share with anyone else and that you check every day. If you do not check your email every day, you may miss important information and documents from other parties or from the court.

Where can I find the form I need?

You can find the form at: ilcourts.info/forms.

How do I fill out the *Request for Preparation of Record on Appeal* form?

You use the *Request for Preparation of Record on Appeal* form to ask the trial court clerk to prepare the Record on Appeal. This form also tells the trial court clerk what to include in the Record on Appeal:

Section 1

- Write your name in the space provided on the form.

Section 2

- Section 2 says what documents will be in the Record on Appeal. The Record on Appeal contains the common law record and any reports of proceedings (transcripts). The common law record includes all papers filed, all judgments and orders entered and all exhibits used at trial.
- Exhibits are a very important part of the common law record. You need to make sure that any exhibits used at trial or attached to another paper were properly filed with the trial court clerk. Exhibits may include physical objects, photographs or video. It is your responsibility to make sure the trial court clerk has all the exhibits for the common law record. At the time you ask the trial court clerk to prepare the Record on Appeal, you should ask the trial court clerk if they have all the exhibits.
- If you discover that any exhibits are not in the court file for your case, you need to file a circuit court *Motion* asking the trial court judge to order the trial court clerk to put those exhibits in the Record on Appeal. Find the *Motion* form here: ilcourts.info/forms.
- Only the exhibits the trial court judge looked at before the appeal was filed can be put in the Record on Appeal. New exhibits that the trial court judge did not see before you appealed cannot be put in the Record on Appeal.

Section 3

- The Report of Proceedings is a transcript that tells the appellate court what the judge and the parties said in the trial and court hearings. You **cannot** use the *Request for Preparation of Record on Appeal* form to request transcripts. To include transcripts, you must complete a *Request for Report of Proceedings (Transcripts)* and submit it to the court reporter's office on the same day you file the *Request for Preparation of the Record on Appeal* with the trial court clerk's office.
 - **NOTE:** If there was no Court Reporter at the hearing and the hearing was not recorded, you must use the *Bystander's Report* or the *Agreed Statement of Facts* form.

- You can find more information on the *Request Report of Proceedings (Transcripts)*, *Bystander's Report*, and *Agreed Statement of Facts* forms here: ilcourts.info/appl-forms.

When do I need to file the *Request for Preparation of Record on Appeal* form?

- You must file the *Request for Preparation of Record on Appeal* to the trial court clerk within **14 days** after you filed the *Notice of Appeal (Civil)*.
- You must also file the *Request for Preparation of Record on Appeal* with the *Docketing Statement* that is due in the appellate court within **14 days** after you filed the *Notice of Appeal (Civil)*.
- The 14-day period to deliver the *Request for Preparation of Record on Appeal* to the trial court clerk starts on the day after you filed the *Notice of Appeal (Civil)*. You must count weekends and holidays. However, if the 14th day falls on a weekend or court holiday, you may deliver the *Request for Preparation of Record on Appeal* on the next business day.
- You must certify in your *Docketing Statement* that you delivered the *Request for Preparation of Record on Appeal* to the trial court clerk's office within **14 days** after you filed your *Notice of Appeal (Civil)*.

What costs will I need to pay when I use the *Request for Preparation of Record on Appeal* form?

- The trial court clerk's office charges a fee to prepare the Record on Appeal. The amount of the fee depends on the length of the Record on Appeal. The trial court clerk's office will tell you when payment is due.
- You may ask the trial court clerk for a fee waiver. See the *How to Request a Fee Waiver* instruction sheet found at: ilcourts.info/forms.
- If you received a fee waiver earlier in the case, it may not apply to the cost of the Record on Appeal and you may have to file another request for a fee waiver with the trial court clerk. Any fee waiver the appellate court gives you does not cover fees the trial court charges for the Record on Appeal.

What do I do after I fill out the form?

Step 1: File the *Request for Preparation of Record on Appeal* with the clerk of the trial court where your trial court case was heard.

- After you fill out your court forms, file them with the trial court clerk. This is done by electronic filing, called "e-filing." You do not have to e-file if:
 - You qualify for an exemption (see the Not E-filing section below) or
 - Your case involves a criminal matter.
- Most people e-file their forms using Odyssey eFileIL at ilcourts.info/efile.

- Follow step-by-step instructions and watch videos that walk you through the steps for e-filing at ilcourts.info/efile-info.
- E-filing is easier on a computer. It may not work on a cell phone or tablet.
- If you do not have access to a computer or if you need help e-filing, take your completed forms to a public library or a Circuit Clerk, Appellate Clerk, or Supreme Court Clerk's office. These places offer public computers where you can e-file your forms.
 - Depending on your courthouse, you can bring your forms on paper and there may be public computers with a scanner where you can turn your paper forms into electronic files.
- Librarians and courthouse staff may be able to help you e-file, but they cannot provide legal advice.
 - You can bring your forms on paper or saved on a flash drive. The public computer will have a scanner where you can turn your paper forms into electronic files.
- Some people are exempt from e-filing, which means they can file paper forms at the courthouse or by mail. People who do not have to e-file are:
 - Inmates in prison or jail who do not have a lawyer.
 - People with a disability that keeps them from e-filing.
- You may also qualify for an exemption from e-filing if you:
 - Do not have Internet or computer access in your home, and it is hard for you to travel.
 - Do not have an email account.
 - Do not have a credit card, debit card, or bank account.
 - Have trouble reading, writing, or speaking English.
 - Tried to e-file your forms, but you were not able to because the equipment or help you needed was not available.
- To ask for an exemption from e-filing, use the form at ilcourts.info/exempt. If you can't print this form, then ask for it at your local courthouse.
 - File your *Certification for Exemption from E-Filing* form with your other court forms at the trial court clerk's office or by mail.
 - If you want a file-stamped copy for your records, bring or send your signed court forms and at least one copy of your forms to the trial clerk's office. Ask them to stamp your copy and return it to you.
 - If you mail your court forms to the trial clerk's office and want a file-stamped copy for your records, include a stamped envelope addressed to you. The trial court will file your forms and send a copy back to you in the envelope.
 - If you need to make copies of your forms, you can do that at the trial clerk's office. They may charge you to make copies.

Step 2: Filing of the Record on Appeal

- You must pay any balance due for the preparation of the Record on Appeal before it is due to be filed in the appellate court, unless your fees have been waived.
- Upon payment of the fee for preparation of the Record on Appeal, the trial court clerk will file the Record on Appeal with the appellate court. Make sure you have also paid your \$50 Docketing Statement fee to the appellate court clerk or they may not accept the Record on Appeal.
- Deadlines for the trial court clerk to file the Record on Appeal depend on the type of appeal you filed. There are **2 possible deadlines** for filing the Record on Appeal:
 - Generally, the trial court clerk must file the Record on Appeal in the appellate court within **63 days** after you filed the *Notice of Appeal (Civil)* in the trial court.
 - However, in child custody (parental responsibilities and parenting time), adoption, termination of parental rights, or other accelerated (fast-tracked) appeals, the trial court clerk must file the Record on Appeal in the appellate court within **35 days** after you filed the *Notice of Appeal (Civil)* in the trial court.
 - To figure out your deadline, count from the day after you filed the *Notice of Appeal (Civil)*. You must count weekends and holidays. However, if the deadline falls on a weekend or court holiday, the trial court clerk may file the Record on Appeal on the next business day.

NOTE: You must keep track of the deadline for the Record on Appeal and periodically check with the trial court clerk to make sure the Record on Appeal will be ready on the deadline. If you find out that the trial court clerk cannot meet the deadline, **you** must file a *Motion* with the appellate court asking for an extension of time for the trial court clerk to file the Record on Appeal. The trial court clerk will **not** ask the appellate court for more time to file the record. You can use the *Appellate Motion* form found here: ilcourts.info/appl-forms.